IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH-V

Company Application No. 462/2022
IN
C.P.(CAA)/80/(PB)2020
IN
C.A.(CAA)/82/(PB)2020

[Under Rule 11 read with Rule 154 of the National Company Law Tribunal Rules, 2016]

IN THE MATTER OF:

1. **Chemester Food Industry Pvt Ltd**
   CIN:U15400DL2014PTC263569;
   Registered Office:
   Premises No. 111, Rectangle 1, Saket, New Delhi- 110017;
   E-mail id: chemesterfood@gmail.com.
   ...Applicant Company/ Demerged Company

2. **Annapati Nutri Foods Pvt Ltd**
   CIN: U15490UP2017PTC095438
   Registered Office:
   A-15/16, Ganesh Nagar, Firozabad-283 203, Uttar Pradesh
   E-mail id: sunjeevag@gmail.com.
   ... Non-Applicant/ Resulting Company

CORAM:

SHRI P.S.N PRASAD, HON'BLE MEMBER (JUDICIAL)

DR. BINOD KUMAR SINHA, HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant : Mr. Kartikey Goel, Advocate

Order Dated: 23.01.2023

ORDER

SHRI P.S.N PRASAD, HON'BLE MEMBER (JUDICIAL)

1. The instant application has been filed on behalf of M/s. Chemester Food Industry Private Limited ('Applicant'/ 'Demerged Company') under the provisions of Rules 11 & 154 of the National Company Law Tribunal Rules, 2016, and other applicable provisions, if any, for corrections of certain typographical errors in the Order dated 3'd November, 2022 (date of pronouncement) passed by the Hon'ble Tribunal in CP (CAA) 80 (PB) of 2020 connected with 1st motion Application being CA (CAA) 82 (PB) of 2020, sanctioning the Scheme of Arrangement of Chemester Food Industry Pvt Ltd and Annapati Nutri Foods Pvt Ltd.

2. The applicant company submits that some unintentional errors as enumerated in Para 5 to 7 of the instant application have occurred in the order dated 03.11.2022 in CP (CAA) 80 (PB) of 2020 connected with 1st motion Application being CA (CAA) 82 (PB) of 2020. Therefore the applicant company prayed for the modification of this Tribunal's order dated 03.11.2022 passed in in CP (CAA) 80 (PB) of 2020 connected with 1st motion Application being CA (CAA) 82 (PB) of 2020

3. Heard. Record has been thoroughly perused. Apparently, while dealing with the CP (CAA) 80 (PB) of 2020 connected with 1st motion Application being CA (CAA) 82 (PB) of 2020, some inadvertent typographical errors and accidental omission of some facts appears in final order dated 03.11.2022, accordingly, in view of the power vested under Section 420(2) of the Companies Act, 2013 read with Rule 11 read with Rule 154 of the National Company Law Tribunal Rules, 2016, this Adjudicating Authority hereby rectify the order dated 03.11.2022 in CP (CAA) 80 (PB) of 2020 connected with First Motion Application being CA (CAA) 82 (PB) of 2020 vide this **corrigendum order** hereby passed in C.A./462/2022-

a) All references of 'Petitioner Companies' stands changed to 'Petitioner Company' i.e., M/s. **Chemester Food Industry Pvt Ltd ('Demerged Company')** in the order dated 03.11.2022.

b) Correct case no. in the case title of the order is ***CP (CAA) 80 (PB) of 2020 connected with CA (CAA) 82 (PB) of 2020***.

c) Case no. of the 1st Motion Application in Para 2 at Page no. 2 of the order dated 03.11.2022 is ***CA (CAA)/82(PB)/2020*** instead of CA(CAA)/82/ND/2020.

d) Day and date of the meeting of Shareholders of the Demerged Company in Para 3 at Page No. 2 of the order dated 03.11.2021 ***is Saturday, 21st November, 2020*** instead of Sunday, 21st November, 2020.

e) Date of newspaper publication in Para 5 at Page No. 3 of the order dated 03.11.2022 is ***14.01.2021*** instead of 04.01.2021.

f) The case no. of the First Motion Application filed by the Non-Petitioner Company/ Resulting Company before the Hon'ble NCLT, Allahabad Bench in Para 6 at Page No. 3 of the order dated 03.11.2022 ***stands corrected as CA (CAA) 139/ALD of 2020.***

g) The correct SRN No. submitted with the RoC, Uttar Pradesh, Kanpur along with the requisite form INC-28 in Para 6 at Page No.4 of the order dated 03.11.2022 to T41457730 instead of SRN: T41457790.

h) In Para 9 at Page No. 5 & 6 of the order dated 03.11.2022, the reference has been made with regard to the assets and liabilities of the ***Demerged Undertaking*** of the Demerged Company.

i) Para '17(a)' at Page No. 8 of the order dated 03.11.2022 stands ***deleted.***

j) In Para '17(b)' at Page No. 8 of the order dated 03.11.2022, the reference is made with regard all the properties, rights and powers of the ***Demerged Undertaking*** of the Demerged Company.

k) In Para '17(c)' at Page No. 8 of the order dated 03.11.2022, the reference is made with regard to all the liabilities and duties of the ***Demerged Undertaking*** of the Demerged Company.

l) In Para '17(d)' at Page No. 8 of the order dated 03.11.2022, the reference is made with regard to all the proceedings pending by or against the ***Demerged undertaking*** of the Demerged Company.

m) In Para '17(e)' at Page No. 8 and Page No.9 of the order dated 03.11.2022, the reference is made with regard to all the employees of the ***Demerged undertaking*** of the Demerged Company in service.

n) Para '17(f) AT page No. 9 of the order dated 03.11.2022 stands substituted as follow:-

"The Petitioner Company shall within thirty days (30 days) of the receipt of this order cause a certified copy of this order to be delivered to the Registrar of Companies and on such certified copy being delivered, the Demerged undertaking shall deemed to be transferred"

Rest of the contents of the final order dated 03.11.2022 remain the same. This corrigendum order to be read along with the original order dated 03.11.2022

Accordingly, the instant application **Company Application No. 462/2022 stands allowed**.

Sd/-
(DR. BINOD KUMAR SINHA)
MEMBER (T)

Sd/-
(SHRI P.S.N PRASAD)
MEMBER (J)